



Policy for Preservation & Archival of Documents

Regulation 9 & 30(8) of SEBI (LODR) Regulations, 2015

1. Introduction

This policy is primarily framed based on Regulation 9 of the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 (hereinafter referred to as “Listing Regulations”) and Companies Act, 2013. Archival Policy as referred to in Regulation 30(8) of the Listing Regulations forms part of this Policy. This policy is intended to ensure compliance particularly with the Listing Regulations and the applicable provisions of Companies Act, 2013.

2. Purpose of the Policy

Regulation 9 of the Listing Regulations mandates that a listed entity shall have a policy for preservation of documents, approved by its board of directors, classifying them in at least two categories as follows:

- Documents whose preservation shall be permanent in nature;
- Documents with a preservation period of not less than eight years after completion of the relevant transactions.

Provided that the Company may keep documents specified in clauses (a) and (b) in electronic mode. Further, Regulation 30(8) of the Listing Regulations also refers to an archival policy as per which all events or information which has been disclosed to stock exchange(s) under regulation 30 shall be hosted on the website of the Company for a minimum period of five years and thereafter as per the archival policy of the company, as disclosed on its website. Besides the above, as per applicable provisions of Companies Act, 2013 certain documents must be preserved permanently or up to a certain prescribed time. Accordingly this policy has been framed keeping in view particularly the requirements of Listing Regulations and the provisions of Companies Act, 2013.

3. Policy — Preservation of Documents

3.1 Preservation with reference to the Companies Act, 2013 and the Listing Regulations

- Documents whose preservation shall be permanent in nature: All those documents which are required to be preserved permanently in accordance with the provisions of applicable Act, Rules, Regulations, Guidelines, Circulars, Notifications etc. as may be applicable on the Company from time-to-time shall be preserved permanently. Details of such documents are listed in Annexure – A.
- Documents with preservation period of not less than eight years after completion of the relevant transactions: All those documents which are required to be preserved in accordance with the provisions of applicable Act, Rules, Regulations, Guidelines, Circulars and Notifications etc. for a period of not less than eight years after completion of the relevant transactions shall be preserved accordingly. Detail of such documents is listed in Annexure – B.
- Documents with preservation period other than those mentioned above: All those documents which are required to be preserved in accordance with the provisions of applicable Act, Rules, Regulations, Guidelines, Circulars, Notifications etc. for a preservation period other than those mentioned above shall be preserved accordingly.

3.2 Documents to be made available on the website of the Company

The Company is to maintain a functional website containing the basic information about the Company; all information and/or documents as specified in the applicable provisions of Companies Act, 2013; all information

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and/or documents as specified in Regulation 46(2) of the Listing Regulations; all information and/or documents as mentioned in Regulation 30 of the Listing Regulations on Material Events; and all other information and/or documents as required under Listing Regulations.

- The Company shall ensure that contents of the website are correct.
- The Company shall update any change in the content of its website within two working days from the date of such change in content.
- Information and/or documents that need to be made available under Regulation 30 of the Listing Regulations shall be made available on the website simultaneously with disclosure to Stock Exchanges.
- The information and/or documents uploaded on the website shall be available for the current financial year and for the preceding five financial years.
- Information and/or documents shall be arranged under proper heads and sub-heads in such a manner that they can easily be located / searched by the viewers — arranged financial year wise with further segregation into four quarters of the financial year, and with all policies or information / documents of a general nature clubbed together at one place.

4. Archival of Documents

4.1 Documents maintained in physical form

- All information and/or documents pertaining to current financial year and for one preceding financial year shall be kept handy and maintained in such a manner that their retrieval is easy and quick.
- All documents pertaining to the period prior to one preceding financial year shall be kept in good condition at least up to the minimum period specified for their maintenance / preservation in the Annexures attached hereto, and shall be maintained in such a manner that their retrieval is easy and quick.

4.2 Documents maintained in electronic form

- All documents pertaining to current financial year and for one preceding financial year shall be maintained on server and backup be maintained on scheduled time and day, in such a manner that their retrieval is easy and quick.
- Backup of all documents pertaining to the period prior to one preceding financial year shall also be maintained on server, in good condition at least up to the minimum period specified for their maintenance / preservation, and maintained in such a manner that their retrieval is easy and quick.

4.3 Documents made available on the website of the Company

After the expiry of the time mentioned in this policy (i.e. five financial years preceding the current financial year), the information and/or document shall be removed from the main website. The backup of said information and/or document which is removed from the main website shall be maintained / preserved in the server for a minimum period of 3 years and after expiry of this period of 3 years the backup may be permanently removed from the server.

5. Destruction of Documents

Any of the documents mentioned in this policy, which are not required to be maintained and preserved permanently shall be destroyed. Documents / records should not be kept longer than is necessary and should be disposed of at the right time, as unnecessary retention of records consumes time, space and equipment use. The documents / records



referred to in Annexure B shall be preserved for at least 8 years (or additional period decided by the Company) and may be disposed of after the expiry of the periods of their preservation, after the approval of the Chief Financial Officer and Company Secretary of the Company.

The Company shall maintain a register of disposal of records in the custody of the Compliance Officer of the Company, wherein the brief particulars of the records disposed of shall be entered. The register of disposal of records shall contain the following columns: Item Number; Brief Particulars of the records disposed of; Date of approval for disposal of records; Date of disposal; and Mode of destruction. This register shall be maintained permanently by the Company with the assistance of the Compliance Officer, either in physical or electronic form.

6. Amendments and Updates

The Board of Directors can amend this Policy, as and when deemed fit. Any or all provisions of this Policy would be subject to revision / amendment in accordance with the Rules, Regulations, Notifications etc. on the subject as may be issued by relevant statutory authorities, from time to time. In case of any amendment(s), clarification(s), circular(s) etc. issued by the relevant authorities are not consistent with the provisions laid down under this Policy, then such amendment(s), clarification(s), circular(s) etc. shall prevail upon the provisions hereunder and this Policy shall stand amended accordingly from the effective date as laid down under such amendment(s), clarification(s), circular(s) etc.

Annexure A — Documents whose preservation shall be permanent in nature

- Certificate of incorporation;
- Memorandum and Articles of Association;
- Agreements made by the Company with Stock Exchanges, Depositories, etc.;
- Minute Books of General Meetings, Board and Committee Meetings as per Companies Act, 2013;
- Register and Index of Members, debenture-holders (if any) or other security holders (if any);
- Register of Contracts as per Companies Act, 2013;
- Register of Charges as per Companies Act, 2013;
- Register of Investments as per Companies Act, 2013;
- Files relating to premises viz. Title Deeds / Lease Deeds of owned premises / land and building, etc. and related Ledger / Register;
- Authorization / licenses obtained from any statutory authority;
- Policies of the Company framed under various regulations;
- Register of disposal of records;
- Such other records as may be required under any law from time to time.

Annexure B — Documents to be preserved for a period of eight years

- Instrument creating charge or modification (from the date of satisfaction of charge) as per Companies Act, 2013;
- Annual Returns as per Companies Act, 2013;
- Register of Deposits as per Companies Act, 2013;
- Register of Allotment (from the date of each allotment) as per Companies Act, 2013;

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- Annual financial statements including annual accounts, Directors' report and Auditors' report;
- Books of accounts including ledgers, vouchers / voucher register and other supporting documents as defined under the Companies Act, 2013;
- Income Tax Returns filed under Income Tax Act, 1961;
- All notices in Form MBP-1 received from Directors of MRC Agrotech Limited along with any amendment thereto;
- Return of declaration in respect of beneficial interest in any share as per Companies Act, 2013;
- Copy of newspaper advertisement or publications;
- Compliance Reports received from any statutory authority;
- The postal ballot and all other papers or registers relating to postal ballot including voting by electronic means;
- Disclosure / Return filed under SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015.



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